

9	Albanese vs. Navient Corporation 30-2025-01516849-CU-CR-CJC	Demurrer to First Amended Complaint Defendants Navient Corporation and Navient Solutions, LLC's (collectively Navient) Demurrer to the First Amended Complaint (FAC) is OVERRULED. Navient's request for judicial notice of the District Court for the Southern District of Iowa's ruling in <i>Nelson v. Navient, et al.</i> is GRANTED as a record of the courts of the United States. However, the District Court's opinion is not binding on this Court just as the numerous other citations to district court cases in the briefings. (See <i>Qualified Patients Assn. v. City of Anaheim</i> (2010) 187 Cal.App.4th 734, 764.) Navient Corporation contends it is not a proper defendant because it is a holding company and Plaintiff has not alleged sufficient facts to support alter ego liability against it. However, Plaintiff alleges Navient Corporation itself participated in the acts alleged in the FAC. <u>1st Cause of Action – Violation of Student Borrower Bill of Rights (Civil Code sections 1788.100-1788.105)</u> Civil Code section 1788.101 prohibits certain actions including "abusive acts or practices when servicing a student loan in this state." (Civ. Code, § 1788.101, subd. (a)(1).) Subdivision (a)(2)(A) enumerates "[m]aterially interfering with the ability of a borrower to understand a term or condition of a student loan" as an abusive act or practice. Further, subdivision (a)(3) expands the definition of "abusive acts and practices" beyond "those described in paragraph (2)." Plaintiff has sufficiently alleged Navient violated Civil Code section 1788.101. Plaintiff alleges Navient materially interfered with his ability to understand the terms and conditions of his student loans, repeatedly and incessantly called him, and contacted his friends and family about the loans. (FAC, ¶ 96.) Plaintiff also alleges violations of Section 1788.102 for failing to properly respond to Plaintiff's written requests, provide information requested, addressing requested errors, and providing an escalation process. <u>2nd Cause of Action – Violation of the Rosenthal Act (Civil Code sections 1788-1788.33)</u> Civil Code sections 1788.10-1788.16 provide a list of prohibited activities for debt collectors. Section 1788.11, subdivision (d) prohibits "[c]ausing a telephone to ring repeatedly or continuously to annoy the person called."
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		And subdivision (e) prohibits excessive communication with the debtor. Plaintiff has adequately alleged ultimate facts to claim Navient violated Section 1788.11. Plaintiff alleges "Navient has called [Plaintiff's] cell phone more than ten times per day, sometimes calling him back-to-back-to-back." (FAC, ¶ 82.) <u>3rd Cause of Action – Violation of the Consumer Credit Reporting Agencies Act (Civil Code sections 1785.1-1785.36)</u> "A person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25, subd. (a).) Plaintiff alleges Navient furnished inaccurate information about Plaintiff's student loans not being disputed to a credit reporting agency. (FAC, ¶ 126.) <u>4th Cause of Action – Unfair Competition</u> "The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law." (<i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 133 (cleaned up).) Plaintiff has sufficiently alleged a claim for unfair business practices. Plaintiff alleges Navient violated the SBBR, Rosenthal Act, and CCRAA. (FAC, ¶ 145.) <u>5th Cause of Action – Declaratory Judgment</u> Plaintiff has adequately alleged an actual controversy regarding the rights and obligations of the parties with respect to Plaintiff's student loans which may lead to subsequent litigation. Plaintiff claims there is a controversy regarding whether Plaintiff's student loans are valid and enforceable. (FAC, ¶ 152.) Motion to Strike First Amended Complaint Defendants Navient Corporation and Navient Solutions, LLC's Motion to Strike Portions of the First Amended Complaint (FAC) is DENIED. Navient improperly combined the Motion to Strike with the demurrer. The combined notice only states Navient is demurring to the FAC and it does not comply with California Rules of Court rule 3.1322, subdivision (a)
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		requiring the full portions of the complaint sought to be struck be quoted and specified consecutively. Defendants are ORDERED to file an answer within 5 days. Defendants to give notice.
10	Garica vs. Providence St Jude Medical Center 30-2025- 01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant, Johanna Su, M.D.'s demurrer to the third and fourth causes of action in plaintiffs' first amended complaint is SUSTAINED without leave to amend. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 546.) The third cause of action for negligent infliction of emotional distress by the baby Emma Rodriguez against Su, is not an independent tort. Since Emma Rodriguez's first and third causes of action are based on the same allegations, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative of the first cause of action for professional negligence resulting in birth injury. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int'l</i> (1985) 166 Cal.App.3d 1123, 1136.) The fourth cause of action for fraudulent concealment claim fails because the factual allegations negate Emma Rodriguez's reliance. The FAC alleges plaintiff Rodriguez was born prematurely on or about 7/12/24. (FAC, ¶¶10-11.) The FAC then alleges the concealment occurred on 8/6/24, when plaintiff Rodriguez was only about 25 days old. (See FAC, ¶¶ 15, 48.) Based on these facts, plaintiff Rodriguez was too young to have appreciated the significance of the concealed fact, i.e., the removal of the medication from plaintiff Garcia's allergy list, and too young to have changed her conduct had she known of the concealed fact. Su remains a defendant on the first cause of action for professional negligence. Su is thus ORDERED to file an answer within 5 days. Motion to Strike Portions of First Amended Complaint Defendant Johanna Su, M.D.'s motion to strike is GRANTED.